

National Sports University Act, 2018

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Union of India - Act

National Sports University Act, 2018

UNION OF INDIA

India

National Sports University Act, 2018

Act 25 of 2018

Published on 17 August 2018

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National Sports University Act, 2018

(Act

No. 25 of 2018

)

[Dated 17.8.2018.]

An Act to establish and incorporate a National Sports University in the State of Manipur, a specialised University first of its kind, to promote sports education in the areas of sports sciences, sports technology, sports management and sports coaching besides functioning as the national training centre for select sports disciplines by adopting best international practices and for matters connected therewith or incidental thereto.

Be it enacted by Parliament in the Sixty-ninth Year of the Republic of India as follows:-

1.

Short title, extent and commencement.

(1)

This Act may be called the National Sports University Act, 2018.

(2)

It extends to the whole of India.

(3)

It shall be deemed to have come into force on the 31st day of May, 2018.

2.

Definitions.

- In this Act, unless the context otherwise requires,-

(a)

"Academic and Activity Council" means the Academic and Activity Council of the University;

(b)

"academic staff" means such categories of staff as are designated as academic staff by the Ordinances;

(c)

"Board of Sports Studies" means the Board of Sports Studies of a Department of the University;

(d)

"Chancellor" means the Chancellor of the University;

(e)

"College" means a college or other academic institution established or maintained by, or admitted to the privileges of, the University;

(f)

"Court" means the Court of the University;

(g)

"Department" means a Department of Studies and includes a Centre of Studies;

(h)

"employee" means any person appointed by the University and includes teachers and other staff of the University;

(i)

"Executive Council" means the Executive Council of the University;

(j)

"Finance Committee" means the Finance Committee of the University;

(k)

"Fund" means the University Fund referred to in section 30;

(l)

"Hall" means a unit of residence or of corporate life for the students of the University, or of an Outlying Campus or of a College or an Institution, maintained by the University;

(m)

"Head of the Department" means the head of any teaching department of the University;

(n)

"Institution" means an academic institution, not being a College, maintained by, or admitted to the privileges of, the University;

(o)

"Outlying Campus" means the campus of the University as may be established by it at any place within or outside India;

(p)

"Principal" means the Head of a College or an Institution maintained by the University and includes, where there is no Principal, the person for the time being duly appointed to act as Principal, and in the absence of the Principal, or the acting Principal, a Vice-Principal duly appointed as such;

(q)

"Regional Centre" means a centre established or maintained by the University for the purpose of coordinating and supervising the work of Study Centres in any region and for performing such other functions as may be conferred on such centre by the Executive Council;

(r)

"Regulations" means the regulations made by any authority of the University under this Act for the time being in force;

(s)

"School" means a School of Studies of the University;

(t)

"section" means the section of this Act;

(u)

"State" includes a Union territory;

(v)

"Statutes" and "Ordinances" mean, respectively, the Statutes and the Ordinances of the University for the time being in force;

(w)

"Study Centre" means a centre established, maintained or recognised by the University for the purpose of advising, counselling, training or for rendering any other assistance required by the students;

(x)

"teachers of the University" means Professors, Associate Professors, Assistant Professors and such other persons as may be appointed for imparting instructions, training or conducting research in the University or in any Outlying Campus, College or Institution or Regional Centres and Study Centres maintained by the University and are designated as teachers by the Ordinances;

(y)

"University" means the National Sports University established and incorporated as a University under this Act;

(z)

"Vice-Chancellor" means the Vice-Chancellor of the University.

3.

Establishment of University.

(1)

There shall be established a University by the name of "National Sports University".

(2)

The headquarters of the University shall be in the State of Manipur and it may establish or maintain Outlying Campuses, Colleges, Regional Centres and Study Centres at such other places in India as it may deem fit:

Provided that the University may, with the prior approval of the Central Government, also establish Outlying Campuses and Study Centres outside India.

(3)

The first Chancellor, the first Vice-Chancellor and the first members of the Court, the Executive Council and the Academic and Activity Council, and all such persons who may hereafter become such officers or members, so long as they continue to hold such office or membership, are hereby constituted a body corporate by the name of "National Sports University".

(4)

The University shall have perpetual succession and a common seal, and shall sue and be sued by the said name.

4.

Objects of University.

- The objects of the University shall be-

(i)

to evolve as an institute of advanced study in the field of physical education and sports sciences;

(ii)

to provide for research and development and dissemination of knowledge in physical education and sports sciences by providing specially designed academic and training programmes in various areas of physical education and sports sciences and training in advanced technologies of sports;

(iii)

to strengthen physical education and sports training programmes to promote sports including traditional and tribal sports and games;

(iv)

to establish centres and institutions of excellence for imparting state of the art educational training and research in the fields of physical education and sports sciences, sports technology and high performance training for all sports and games;

(v)

to provide professional and academic leadership to other institutions in the field of physical education and sports sciences;

(vi)

to provide vocational guidance and placement services in physical education, sports sciences, sports medicine, sports technology and other related fields;

(vii)

to generate capabilities for the development of knowledge, skills and competences at various levels in the fields of physical education and sports sciences, sports technology and high performance training for all sports and games;

(viii)

to generate capabilities to provide infrastructure of international standard for education, training and research in the areas related to physical education and sports sciences, sports technology and high performance training for all sports and games;

(ix)

to prepare highly qualified professionals in the fields of physical education and sports sciences, sports technology and high performance training for all sports and games;

(x)

to serve as a Centre of Excellence for the elite and other talented sports persons of all sports and games and innovation in physical education and sports sciences and to carry out, endorse and propagate research;

(xi)

to function as a leading resource centre for knowledge and development in the areas of physical education and sports sciences, sports technology and high performance training for all sports and games;

(xii)

to provide international collaboration in the fields of physical education and sports sciences, sports technology and high performance training for all sports and games;

(xiii)

to establish close linkage with sports academies, schools, colleges, sports and recreation clubs, sports associations and international federations for the purpose of teaching, training and research in physical education and sports sciences, sports technology and high performance training for all sports and games;

(xiv)

to train talented athletes so as to help them to evolve into elite athletes of international level;

(xv)

to make India become a sporting power;

(xvi)

such other objects, not inconsistent with the provisions of this Act, which the Central Government may, by notification in the Official Gazette, specify in this behalf.

5.

Powers and functions of University.

(1)

The University shall have the following powers and functions, namely:--

(i)

to plan, design, develop and prescribe courses of study and conduct appropriate academic and training programmes in physical education and sports sciences including sports technology and to provide for instruction and training in such branches of learning as the University may, from time to time, determine and to make provisions for research and for the advancement and dissemination of knowledge;

(ii)

to grant, subject to such conditions as the University may determine, diplomas or certificates to, and confer degrees or

other academic distinctions on, persons, on the basis of examinations, evaluation or any method of testing, and to withdraw any such certificates, diplomas, degrees or other academic distinctions for good and sufficient cause;

(iii)

to provide opportunities to the students of the University to participate in the sports tournaments and competitions in co-ordination with established International Sports Federations, National Sports Federations, Indian Olympic Association and Association of Indian Universities;

(iv)

to have liaison or membership with various international professional organisations or bodies;

(v)

to establish and maintain, with the prior approval of the Central Government, such Outlying Campuses, Regional Centres, specialised laboratories or other units for research, instruction and training as are, in the opinion of the University, necessary for the furtherance of its objects;

(vi)

to establish, maintain or recognise Study Centres in the manner laid down by the Statutes;

(vii)

to establish and maintain Colleges, Institutions and Halls;

(viii)

to confer honorary degrees or other distinctions in the manner prescribed by the Statutes;

(ix)

to institute Principalships, Professorships, Associate Professorships, Assistant Professorships and other teaching or academic positions, required by the University and to appoint persons to such Principalships, Professorships, Associate Professorships, Assistant Professorships or other teaching or academic positions;

(x)

to appoint persons working in any University or academic institution, including those located outside the country, as teachers of the University for a specified period;

(xi)

to create administrative, ministerial and other posts and to make appointments thereto;

(xii)

to co-operate or collaborate or associate with any other University or authority or Institution of higher learning, including those located outside the country, in such manner and for such purposes as the University, may determine;

(xiii)

to provide facilities through the distance education system to such persons and in such manner as may be prescribed by the Statutes;

(xiv)

to institute and award fellowships, scholarships, studentship, medals and prizes for raising academic standards and research;

(xv)

to organise and to undertake extramural studies, training and extension services;

(xvi)

to make provision for research and advisory services and for that purpose, to enter into such arrangements with other institutions, industrial or other organisations, as the University may deem necessary;

(xvii)

to organise and conduct refresher courses, workshops, seminars and other programmes for teachers, evaluators, other academic staff and students;

(xviii)

to appoint on contract or otherwise visiting Professors, Emeritus Professors, Consultants and such other persons who may contribute to the advancement of the objects of the University;

(xix)

to determine standards of admission to the University, which may include examination, evaluation or any other method of testing;

(xx)

to demand and receive payment of fees and other charges;

(xxi)

to supervise the residences of the students of the University and to make arrangements for promoting their health and general welfare;

(xxii)

to lay down conditions of service of all categories of employees, including their code of conduct;

(xxiii)

to regulate and enforce discipline among the students and the employees, and to take such disciplinary measures in this regard as may be deemed by the University to be necessary;

(xxiv)

to make arrangements for promoting the health and general welfare of the employees;

(xxv)

to receive benefactions, donations and gifts and to acquire, hold and manage, and to dispose of, with the previous approval of the Central Government, any property, movable or immovable, including trust and endowment properties, for the purposes of the University;

(xxvi)

to borrow, with the previous approval of the Central Government, on the security of the property of the University, money for the purposes of the University;

(xxvii)

to conduct innovative experiments and promote new methods and technologies in the fields of physical education, sports sciences, sports medicine, sports technology, sports management and other related fields;

(xxviii)

to purchase or to take on lease any land or building or sports complex or sports infrastructure and scientific sports research equipment or indoor stadium or works which may be necessary or convenient for the purposes of the University, on such terms and conditions as it may think fit and proper and to construct, alter and maintain any such building or work;

(xxix)

to start any new allied course or research programme or diploma or training programme and discontinue any course or training programme;

(xxx)

to invest the funds of the University in or upon such securities and transpose any investment from time to time in such manner as it may deem fit in the interest of the University;

(xxxi)

to execute conveyances regarding transfers, mortgages, leases, licenses, agreements and other conveyances in respect of the property, movable or immovable, including Government securities, belonging to the University or to be acquired for the purposes of the University, after taking prior permission of the Central Government;

(xxxii)

to act as a technical advisory body to Government of India and other National Organisations, State Governments and National Sports Federations on all matters related to sports;

(xxxiii)

to provide training, coaching and other back up to high level sports persons for achieving success in different national and international sports competitions;

(xxxiv)

to give effect to the procedures and standards provided under the Khelo India Scheme or the National Sports Talent Search and Identification Scheme;

(xxxv)

to confer autonomous status on a College or an Institution in the manner laid down by the Statutes;

(xxxvi)

to admit to its privileges any College or Institution in or outside India subject to such conditions as may be laid down by the Statutes;

Provided that no College or Institution shall be so admitted except with the prior approval of the Central Government;

(xxxvii)

to provide for the preparation of instructional and training materials, including films, cassettes, tapes, video cassettes and other software;

(xxxviii)

to recognise persons for imparting instructions in any College or Institution admitted to the privileges of the University; and

(xxxix)

to do all such other acts and things as may be necessary, incidental or conducive to the attainment of all or any of its objects.

(2)

The University shall in the exercise of its powers have jurisdiction over the whole of India and to the Outlying Campuses and Study Centres outside India.

(3)

In exercising its powers referred to in sub-section (1), it shall be the endeavour of the University to maintain an all-India character and high standards of teaching, training and research, and the University shall, among other measures which may be necessary for the said purpose, take, in particular, the following measures, namely:-

(i)

admissions of students and recruitment of faculty shall be made on all-India basis through appropriate procedures approved by the Executive Council of the University;

(ii)

foreign students shall be admitted by the University to various courses and programmes as per the policy and schemes of the Government of India and the procedure approved by the Executive Council of the National Sports University;

(iii)

inter-University mobility of faculty with portable pension scheme benefits, if any, and protection of seniority shall be encouraged;

(iv)

semester system, continuous evaluation and choice-based credit system shall be introduced and the University shall enter into agreement with other Universities and academic institutions for credit transfer and joint degree programmes;

(v)

innovative courses and programmes of studies shall be introduced with a provision for periodic review and restructuring;

(vi)

active participation of students shall be ensured in all academic activities of the University, including evaluation of teachers;

(vii)

accreditation shall be obtained from the National Assessment and Accreditation Council or any other accrediting agency at the national level; and

(viii)

e-governance shall be introduced with effective management information.

6.

University to be open to all caste, creed, race or class.

- The University shall be open to persons of any sex and of whatever caste, creed, race or class, and it shall not be lawful for the University to adopt or impose on any person, any test whatsoever of religious belief or profession in order to entitle such person to be appointed as a teacher of the University or to hold any other office therein or to be admitted as a student in the University or to graduate thereat or to enjoy or exercise any privilege thereof:

Provided that nothing in this section shall be deemed to prevent the University from making special provisions for the employment or admission of women, persons with disabilities or of persons belonging to the weaker sections of the society and, in particular, of the Scheduled Castes, the Scheduled Tribes and the other socially and educationally backward classes of citizens:

Provided further that no such special provision shall be made on the ground of domicile.

7.

Central Government to review work and progress of University.

(1)

The Central Government may, from time to time, appoint one or more persons to review the work and progress of the University, including Outlying Campuses, Colleges, Institutions, Regional Centres and Study Centres maintained by it, and to submit a report thereon; and upon receipt of that report, the Central Government may, after obtaining the views of the Executive Council thereon through the Vice-Chancellor, take such action and issue such directions, as it considers necessary, in respect of any of the matters dealt with in the report and the University shall abide by such action and be bound to comply with such directions.

(2)

The Central Government shall have the right to cause an inspection to be made by such person or persons, as it may direct, of the University, its buildings, sports complexes, libraries, laboratories and equipment, and of any Outlying Campus or College or Institution or Regional Centres or Study Centres maintained by the University; and also of the examinations, teaching and other work conducted or done by the University and to cause an inquiry to be made in like manner in respect of any matter connected with the administration or finances of the University, Colleges or Institutions or Regional Centres or Study Centres.

(3)

The Central Government shall, in every matter referred to in sub-section (2), give notice of its intention to cause an inspection or inquiry to be made, to the University, and the University shall have the right to make such representations to the Central Government, as it may consider necessary.

(4)

After considering the representations, if any, made by the University, the Central Government may cause to be made such inspection or inquiry as is referred to in sub-section (3).

(5)

Where any inspection or inquiry has been caused to be made by the Central Government, the University shall be entitled to appoint a representative, who shall have the right to be present and be heard at such inspection or inquiry.

(6)

The Central Government may, if the inspection or inquiry is made in respect of the University or any Outlying Campus or College or Institution or Regional Centre or Study Centre established or maintained by it, address the Vice-Chancellor with reference to the result of such inspection or inquiry together with such views and advice with regard to the action to be taken thereon, as the Central Government may be pleased to offer, and on receipt of address made by the Central Government, the Vice-Chancellor shall communicate to the Executive Council the views of the Central Government with such advice as the Central Government may offer upon the action to be taken thereon.

(7)

The Executive Council shall communicate through the Vice-Chancellor to the Central Government such action, if any, as it proposes to take or has been taken upon the result of such inspection or inquiry.

(8)

Where, the Executive Council does not, within a reasonable time, take action to the satisfaction of the Central Government, it may, after considering any explanation furnished or representation made by the Executive Council, issue such directions, as it may think fit, and the Executive Council shall comply with such directions.

(9)

Without prejudice to the foregoing provisions of this section, the Central Government may, by order in writing, annul any proceeding of the University which is not in conformity with the provisions of this Act or the Statutes or the Ordinances: Provided that before making any such order, the Central Government shall call upon the Vice-Chancellor to show cause why such an order should not be made, and, if any cause is shown within a reasonable time, it shall consider the same.

(10)

The Central Government shall have such other powers, in respect of the affairs of the University, as may be prescribed by the Statutes.

8.

Officers of University.

- The following shall be the officers of the University, namely:-

(a)

the Chancellor;

- (b)
the Vice-Chancellor;
- (c)
the Deans of Schools;
- (d)
the Registrar;
- (e)
the Finance Officer;
- (f)
the Controller of Examinations;
- (g)
the Librarian; and
- (h)
such other officers as may be declared by the Statutes to be the officers of the University.

9.
Chancellor.

- (1)
The Chancellor shall be appointed by the Central Government in such manner as may be prescribed by the Statutes.

(2)
The Chancellor shall, by virtue of his office, be the head of the University and shall, if present, preside at the Convocations of the University held for conferring degrees and other ceremonial functions and also the meetings of the Court.

10.
Vice-Chancellor.

- (1)
The Vice-Chancellor shall be appointed by the Central Government in such manner as may be prescribed by the Statutes.

(2)
The Vice-Chancellor shall be the principal executive and academic officer of the University and shall exercise general supervision and control over the affairs of the University and give effect to the decisions of all the authorities of the University.

(3)
The Vice-Chancellor may, if he is of the opinion that immediate action is necessary on any matter, exercise any power conferred on any authority of the University by or under this Act and shall apprise such authority at its next meeting the action taken by him on such matter:

Provided that if the authority concerned is of the opinion that such action ought not to have been taken, it may refer the matter to the Central Government whose decision thereon shall be final:

Provided further that any person in the service of the University who is aggrieved by the action taken by the Vice-Chancellor under this sub-section shall have the right to represent against such action to the Executive Council within three months from the date on which decision on such action is communicated to him and thereupon the Executive Council may confirm, modify or reverse the action taken by the Vice-Chancellor.

(4)
Where the Vice-Chancellor is of the opinion that any decision taken by any authority of the University is beyond the powers of the authority conferred under the provisions of this Act or the Statutes or the Ordinances, or that any decision taken by the authority is not in the interest of the University, he may ask the authority concerned to review its decision within sixty days of such decision and if the authority refuses to review the decision either in whole or in part or no decision is taken by it within the said period of sixty days, the matter shall be referred to the Central Government whose decision thereon shall be final.

(5)
The Vice-Chancellor shall exercise such other powers and perform such other duties as may be prescribed by the Statutes or the Ordinances.

11.

Deans of Schools.

- Every Dean of School shall be appointed in such manner, and on such terms and conditions of service, and shall exercise such powers and perform such duties, as may be prescribed by the Statutes.

12.

Registrar.

(1)

The Registrar shall be appointed in such manner, and on such terms and conditions of service, as may be prescribed by the Statutes.

(2)

The Registrar shall have the power to enter into agreements, sign documents and authenticate records on behalf of the University, and shall exercise such powers and perform such duties, as may be prescribed by the Statutes.

13.

Finance Officer.

- The Finance Officer shall be appointed in such manner, and shall exercise such powers and perform such duties, as may be prescribed by the Statutes.

14.

Controller of Examinations.

- Controller of Examinations shall be appointed in such manner and shall exercise such powers and perform such duties, as may be prescribed by the Statutes.

15.

Librarian.

- The Librarian shall be appointed in such manner and on such terms and conditions of service, and shall exercise such powers and perform such duties, as may be prescribed by the Statutes.

16.

Other officers.

- The manner of appointment and powers and duties of other officers of the University shall be prescribed by the Statutes.

17.

Authorities of University.

- The following shall be the authorities of the University, namely:-

(a)

the Court;

(b)

the Executive Council;

(c)

the Academic and Activity Council;

(d)

the Board of Sports Studies;

(e)

the Finance Committee;

(f)

such other authorities as may be declared by the Statutes to be the authorities of the University.

18.

The Court.

(1)

The constitution of the Court and the term of office of its members shall be prescribed by the Statutes.

(2)

Subject to the provisions of this Act, the Court shall have the following powers and functions, namely:-

(a)

to review, from time to time, the broad policies and programmes of the University, and to suggest measures for the

improvement and development of the University;

(b)

to consider and pass resolutions on the annual report and the annual accounts of the University and the audit report on such accounts;

(c)

to advise the Central Government in respect of any matter which may be referred to it for advice; and

(d)

to perform such other functions as may be prescribed by the Statutes.

19.

Executive Council.

(1)

The Executive Council shall be the principal executive body of the University.

(2)

The constitution of the Executive Council, the term of office of its members and its powers and functions shall be prescribed by the Statutes.

20.

Academic and Activity Council.

(1)

The Academic and Activity Council shall be the principal academic body of the University and shall, subject to the provisions of this Act, the Statutes and the Ordinances, co-ordinate and exercise general supervision over the academic policies of the University.

(2)

The constitution of the Academic and Activity Council, the term of office of its members and its powers and functions shall be prescribed by the Statutes:

Provided that the Academic and Activity Council shall have sports persons who have achieved distinction in Olympics or world championships.

21.

Board of Sports Studies.

- The constitution, powers and functions of the Board of Sports Studies shall be prescribed by the Statutes.

22.

Finance Committee.

- The constitution, powers and functions of the Finance Committee shall be prescribed by the Statutes.

23.

Other authorities of University.

- The constitution, powers and functions of other authorities, as may be declared by the Statutes to be the authorities of the University, shall be prescribed by the Statutes.

24.

Power to make Statutes.

- Subject to the provisions of this Act, the Statutes may provide for all or any of the following matters, namely:-

(a)

the constitution, powers and functions of authorities and other bodies of the University, as may be constituted from time to time;

(b)

the appointment and continuance in office of the members of the said authorities and bodies, the filling up of vacancies of members, and all other matters relating to those authorities and other bodies for which it may be necessary or desirable to provide;

(c)

the appointment, powers and duties of the officers of the University and their emoluments;

(d)

the appointment of teachers, academic staff and other employees of the University, the emoluments and conditions of service;

- (e)
the appointment of teachers and academic staff working in any other University or organisation for a specific period for undertaking a joint project;
- (f)
the conditions of service of employees including provisions for pension, insurance, provident fund, the manner of termination of service and disciplinary action;
- (g)
the principles governing the seniority of service of the employees of the University;
- (h)
the procedure for arbitration in cases of dispute between employees or students and the University;
- (i)
the procedure for appeal to the Executive Council by any employee or student against the action of any officer or authority of the University;
- (j)
the conferment of autonomous status on a College or an Institution or a Department;
- (k)
the establishment and abolition of Schools, Departments, Centres, Halls, Colleges, Institutions, Regional Centres and Study Centres;
- (l)
the conferment of honorary degrees;
- (m)
the conferment and withdrawal of degrees, diplomas, certificates and other academic distinctions;
- (n)
the management of Colleges, Institutions, Regional Centres and Study Centres established and maintained by the University;
- (o)
the delegation of powers vested in the authorities or officers of the University;
- (p)
the maintenance of discipline among the employees and students; and
- (q)
all other matters which by this Act are to be, or may be, provided for by the Statutes.

25.

Statutes, how to be made.

(1)

The first Statutes are those set out in the Schedule to this Act.

(2)

The Executive Council may, from time to time, make new or additional Statutes or may amend or repeal any Statutes referred to in sub-section (1):

Provided that the Executive Council shall not make, amend or repeal any Statutes affecting the status, powers or constitution of any authority of the University until such authority has been given an opportunity of expressing an opinion in writing on proposed changes, and any opinion so expressed shall be considered by the Executive Council.

(3)

Every new Statutes or Statutes amending or repealing existing Statutes shall require the approval of the Central Government and unless so approved, they shall be invalid.

(4)

Notwithstanding anything contained in the foregoing sub-sections, the Central Government may make new or additional Statutes or amend or repeal the Statutes referred to in sub-section (1), during the period of three years immediately after the commencement of this Act:

Provided that the Central Government may, on the expiry of the said period of three years, make, within one year from the date of such expiry, such detailed Statutes as it may consider necessary and such detailed Statutes shall be laid before both Houses of Parliament.

(5)

Notwithstanding anything contained in this section, the Central Government may direct the University to make provisions in the Statutes in respect of any matter specified by it and if the Executive Council is unable to implement such direction within sixty days of its receipt, the Central Government may, after considering the reasons, if any, communicated by the Executive Council for its inability to comply with such direction, make or amend the Statutes suitably.

26.

Power to make Ordinances.

(1)

Subject to the provisions of this Act and the Statutes, the Ordinances may provide for all or any of the following matters, namely:-

(a)

the admission of students to the University and their enrolment as such;

(b)

the courses of study and their duration to be laid down for all degrees, diplomas and certificates of the University;

(c)

the medium of instruction and examination;

(d)

the award of degrees, diplomas, certificates and other academic distinctions, the qualifications for the same and the means to be taken relating to the granting and obtaining of the same;

(e)

the fees to be charged for courses of study in the University and for admission to examinations, degrees and diplomas of the University;

(f)

the conditions for award of fellowships, scholarships, studentships, medals and prizes;

(g)

the conduct of examinations, including the term of office and manner of appointment and the duties of examining bodies, examiners and moderators;

(h)

the conditions of residence of the students of the University;

(i)

the special arrangements, if any, which may be made for the residence and teaching of women students and the prescribing of special courses of studies for them;

(j)

the establishment of Centres of Studies, Board of Studies, Specialised Laboratories and other Committees;

(k)

the manner of co-operation and collaboration with other Universities, institutions and other agencies including learned bodies or associations;

(l)

the creation, composition and functions of any other body which is considered necessary for improving the academic life of the University;

(m)

the institution of fellowships, scholarships, studentships, medals and prizes;

(n)

the setting up of a machinery for redressal of grievances of employees and students; and

(o)

any other matter which, by this Act or the Statutes, is to be or may be, provided for by the Ordinances.

(2)

The first Ordinances shall be made by the Vice-Chancellor with previous approval of the Executive Council and the Ordinances so made may also be amended or repealed at any time by the Executive Council in the manner prescribed by the Statutes.

27.

Regulations.

- The authorities of the University may make Regulations, consistent with this Act, the Statutes and the Ordinances, for the conduct of their own business and that of the Committees, if any, appointed by them and not provided for by this Act, the Statutes or the Ordinances, in the manner prescribed by the Statutes.

28.

Annual report.

(1)

The annual report of the University shall be prepared under the directions of Executive Council, which shall include, among other matters, the steps taken by the University towards the fulfilment of its objects and shall be submitted to the Court on or before such date as may be prescribed by the Statutes and the Court shall consider the report in its annual meeting.

(2)

The Court shall submit the annual report to the Central Government along with its comments, if any.

(3)

The Central Government shall, as soon as may be, cause a copy of the annual report to be laid before both the Houses of Parliament.

29.

Annual accounts.

(1)

The annual accounts and balance-sheet of the University shall be prepared under the directions of the Executive Council and shall, once at least every year and at intervals of not more than fifteen months, be audited by the Comptroller and Auditor-General of India or by such persons as he may authorise in this behalf.

(2)

A copy of the annual accounts together with the audit report thereon shall be submitted to the Court and the Central Government along with the observations of the Executive Council.

(3)

Any observations made by the Central Government on the annual accounts shall be brought to the notice of the Court and the observations of the Court, if any, shall, after being considered by the Executive Council, be submitted to the Central Government.

(4)

The Central Government shall, as soon as may be, cause the copy of the annual accounts together with the audit report to be laid before both the Houses of Parliament.

(5)

The audited annual accounts after having been laid before both the Houses of Parliament shall be published in the Official Gazette.

30.

Fund of University.

(1)

There shall be a University Fund which shall include--

(a)

any contribution or grant made by the University Grants Commission or the Central Government;

(b)

any contribution or grant made by the State Government;

(c)

any contribution made by Government, semi-Government or autonomous bodies;

(d)

any loans, gifts, bequests, donations, endowments or other grants, if any;

(e)

income received by the University from fees and charges;

(f)

the moneys received by the University from the collaborating industries in terms of the provisions of the Memorandum of

Understanding entered between the University and the industry for the establishment of sponsored chairs, fellowships or infrastructure facilities of the University; and

(g)

amounts received in any other manner from any other source.

(2)

All funds of the University shall be deposited in such banks or invested in such manner as the Board may decide on the recommendation of the Finance Committee.

(3)

The funds of the University shall be applied towards the expenses of the University including expenses incurred in the exercise of its powers and discharge of its functions by or under this Act.

31.

Returns and information.

- The University shall furnish to the Central Government such returns or other information with respect to its property or activities, within such period, as the Central Government may, from time to time, require.

32.

Conditions of service of employees, etc.

(1)

Every employee of the University shall be appointed under a written contract, which shall be lodged with the University and a copy of which shall be furnished to the employee concerned.

(2)

Any dispute arising out of the contract between the University and any employee shall, at the request of the employee, be referred to a Tribunal of Arbitration consisting of one member appointed by the Executive Council, one member nominated by the employee concerned and an umpire appointed by the Central Government.

(3)

The decision of the Tribunal shall be final and no suit shall lie in any civil court in respect of the matters decided by the Tribunal:

Provided that nothing in this sub-section shall preclude the employee from availing of judicial remedies available under articles 32 and 226 of the Constitution.

(4)

Every request made by the employee under sub-section (2) shall be deemed to be a submission to arbitration upon the terms of this section within the meaning of the Arbitration and Conciliation Act, 1996, (26 of 1996).

(5)

The procedure for regulating the work of the Tribunal shall be prescribed by the Statutes.

33.

Procedure of appeal and arbitration in disciplinary cases against students.

(1)

Any student or candidate for an examination whose name has been removed from the rolls of the University by the orders or resolution of the Vice-Chancellor, Discipline Committee or Examination Committee, as the case may be, and who has been debarred from appearing at the examinations of the University for more than one year, may, within ten days of the date of receipt of such orders or copy of such resolution by him, appeal to the Executive Council and the Executive Council may confirm, modify or reverse the decision of the Vice-Chancellor or the Committee, as the case may be.

(2)

Any dispute arising out of any disciplinary action taken by the University against a student shall, at the request of such student, be referred to a Tribunal of Arbitration and the provisions of sub-sections (2), (3), (4) and (5) of section 32 shall, as far as may be, apply to a reference made under this sub-section.

34.

Right to appeals.

- Every employee or student of the University or of a College or an Institution or a Regional Centre or a Study Centre established or maintained by the University shall, notwithstanding anything contained in this Act, have a right to appeal to the Executive Council within such time, as may be prescribed by the Statutes, against the decision of any officer or

authority of the University, or of the Principal or the management of any College or Institution or Regional Centre or Study Centre, as the case may be, and thereupon, the Executive Council may confirm, modify or reverse the decision appealed against.

35.

Provident and pension funds.

(1)

The University shall constitute for benefit of its employees such provident fund or any other similar fund or provide such insurance schemes, as it may deem fit, in such manner and subject to such conditions, as may be prescribed by the Statutes.

(2)

Where such provident fund or other similar fund has been so constituted, the Central Government may declare that the provisions of the Provident Funds Act, 1925, (19 of 1925) shall apply to such fund, as if it were a Government provident fund.

36.

Disputes as to constitution of authorities and bodies.

- If any question arises as to whether any person has been duly elected or appointed as, or is entitled to be, a member of any authority or other body of the University, the matter shall be referred to the Central Government whose decision thereon shall be final.

37.

Filling of casual vacancies.

- All casual vacancies among the members (other than ex officio members) of any authority or other body of the University shall be filled, as soon as may be, by the person or body who appoints, elects or co-opts the member whose place has become vacant and the persons appointed, elected or co-opted to a casual vacancy shall be a member of such authority or body for the residue of the term for which the person whose place he fills would have been a member.

38.

Proceedings of authorities or bodies not invalidated by vacancies.

- No act or proceedings of any authority or other body of the University shall be invalid merely by reason of the existence of a vacancy or vacancies among its members.

39.

Protection of action taken in good faith.

- No suit or other legal proceedings shall lie against any officer or other employee of the University for anything which is in good faith done or intended to be done in pursuance of any of the provisions of this Act, the Statutes or the Ordinances.

40.

Mode of proof of University record.

- Notwithstanding anything contained in the Indian Evidence Act, 1872, (1 of 1872) or in any other law for the time being in force, a copy of any receipt, application, notice, order, proceeding or resolution of any authority or other body of the University, or any other document in possession of the University, or any entry in any register duly maintained by the University, if certified by the Registrar, shall be received as prima facie evidence of such receipt, application, notice, order, proceeding, resolution or document or the existence of entry in the register and shall be admitted as evidence of the matters and transactions therein where the original thereof would, if produced, have been admissible in evidence.

41.

Power to remove difficulties.

(1)

If any difficulty arises in giving effect to the provisions of this Act, the Central Government may, by order published in the Official Gazette, make such provisions, not inconsistent with the provisions of this Act, as appears to it to be necessary or expedient for removing the difficulty:

Provided that no such order shall be made under this section after the expiry of three years from the commencement of this Act.

(2)

Every order made under sub-section (1) shall be laid, as soon as may be after it is made, before each House of

Parliament, while it is in session, for a total period of thirty days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the order or both Houses agree that the order should not be made, the order shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that order.

42.

Statutes, Ordinances and Regulations to be published in the Official Gazette and to be laid before Parliament.

(1)

Every Statute, Ordinance or Regulation made under this Act shall be published in the Official Gazette.

(2)

Every Statute, Ordinance or Regulation made under this Act, shall be laid, as soon as may be after it is made, before each House of Parliament, while it is in session, for a total period of thirty days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the Statute, Ordinances or Regulations or both Houses agree that the Statute, Ordinances or Regulations should not be made, the Statute, Ordinances or Regulations shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under the Statute, Ordinances or Regulations.

(3)

The power to make Statutes, Ordinances or Regulations shall include the power to give retrospective effect, from a date not earlier than the date of commencement of this Act, to the Statutes, Ordinances or Regulations or any of them but no retrospective effect shall be given to any Statutes, Ordinances or Regulations so as to pre-judicially affect the interests of any person to whom such Statutes, Ordinances or Regulations may be applicable.

43.

Transitional provisions.

- Notwithstanding anything contained in this Act and the Statutes,-

(a)

the first Vice-Chancellor shall be appointed by the Central Government in such manner and on such conditions as may be deemed fit and the said officer shall hold office for such term, not exceeding five years, as may be specified by the Central Government;

(b)

the first Registrar and the first Finance Officer shall be appointed by the Central Government and each of the said officers shall hold office for a term of three years;

(c)

the first Court and the first Executive Council shall consist of not more than thirty-one members and eleven members, respectively, who shall be nominated by the Central Government and shall hold office for a term of three years; and

(d)

the first Academic and Activity Council shall consist of not more than twenty-one members, who shall be nominated by the Central Government and they shall hold office for a term of three years:

Provided that if any vacancy occurs in the above offices or authorities, the same shall be filled by appointment or nomination, as the case may be, by the Central Government and the person so appointed or nominated shall hold office for so long as the officer or member in whose place he is appointed or nominated would have held office, if such vacancy had not occurred.

44.

Repeal and savings.

(1)

The National Sports University Ordinance, 2018 is hereby repealed.

(2)

Notwithstanding such repeal, anything done or any action taken under the said Ordinance shall be deemed to have been done or taken under the corresponding provisions of this Act.

The Schedule

[See section 25(1)]

The Statutes of the University

1. Chancellor. - (1) The Chancellor shall be appointed by the Central Government from a panel of names of not less than three persons recommended by the Executive Council:

Provided that if the Central Government does not approve any of the persons included in the panel, it may call for an extended fresh panel.

(2)

The Chancellor shall be an eminent person in the field of sports who shall either be a sports person himself or a Sports Administrator or a Sports Academician.

(3)

The Chancellor shall hold office for the term of five years and shall not be eligible for re-appointment:

Provided that notwithstanding the expiry of his term of office, the Chancellor shall continue to hold office until his successor enters upon his office.

2. Vice-Chancellor. - (1) The Vice-Chancellor shall be appointed by the Central Government from out of a panel of names recommended by a Committee as constituted under clause (2):

Provided that if the Central Government does not approve any of the persons included in the panel, it may call for an extended fresh panel.

(2)

The Committee referred to in clause (1) shall consist of five persons, out of whom three shall be nominated by the Executive Council and two by the Central Government, and one of the nominees of the Central Government shall be the convener of the Committee:

Provided that none of the members of the Committee shall be an employee of the University or of a College or Institution or Regional Centre or Study Centre established or maintained by the University or a member of any authority of the University.

(3)

The Vice-Chancellor shall be a whole-time salaried officer of the University.

(4)

The Vice-Chancellor shall hold office for a term of five years from the date on which he enters upon his office, or until he attains the age of seventy years, whichever is earlier, and he shall not be eligible for re-appointment:

Provided that notwithstanding the expiry of the said period of five years, he shall continue in office until his successor is appointed and enters upon his office:

Provided further that the Central Government may direct any Vice-Chancellor after his term has expired, to continue in office for such period, not exceeding a total period of one year, as may be specified by it:

Provided also that when the office of the Vice-Chancellor becomes vacant due to death, resignation or otherwise, or, as the case may be, due to illness or such other cause, the Executive Council may appoint the senior-most Dean to perform the functions of the Vice-Chancellor until a new Vice-Chancellor is appointed or, as the case may be, the existing Vice-Chancellor resumes his duties.

(5)

Notwithstanding anything contained in clause (4), the Central Government may, at any time after the Vice-Chancellor has entered upon his office, by an order in writing, remove the Vice-Chancellor from office on grounds of incapacity, misconduct or violation of statutory provisions:

Provided that no such order shall be made by the Central Government unless the Vice-Chancellor has been given a reasonable opportunity of showing cause against the action proposed to be taken against him:

Provided further that the Central Government may, at any time before making such order, place the Vice-Chancellor under suspension, pending enquiry.

(6)

(a)

The Vice-Chancellor shall be paid a monthly salary and allowances, other than house rent allowance, at the rates fixed by the Central Government from time to time and he shall be entitled, without payment of rent, to use a furnished residence throughout his term of office and no charge shall fall on the Vice-Chancellor in respect of the maintenance of

such residence.

(b)

The Vice-Chancellor shall be entitled to such terminal benefits and allowances as may be fixed by the Central Government from time to time:

Provided that where an employee of the University or of a College, Institution, Regional Centre or Study Centre established or maintained by the University, or of any other University or any College or Institution admitted to the privileges of the University or such other University, is appointed as the Vice-Chancellor, he may be allowed to continue to contribute to any provident fund of which he is a member and the University shall contribute to the account of such person in that provident fund at the same rate at which the person had been contributing immediately before his appointment as the Vice-Chancellor:

Provided further that where such employee had been a member of any pension scheme, the University shall make the necessary contribution to such scheme.

(c)

The Vice-Chancellor shall be entitled to travelling allowance at such rates as may be fixed by the Executive Council.

(d)

The Vice-Chancellor shall be entitled to leave on full pay at the rate of thirty days in a calendar year and the leave shall be credited to his account in advance in two half-yearly installments of fifteen days each on the first day of January and July every year:

Provided that if the Vice-Chancellor assumes or relinquishes charge of the office of the Vice-Chancellor during the currency of a half-year, the leave shall be credited proportionately at the rate of two and-a-half days for each completed month of service.

(e)

In addition to the leave referred to in sub-clause (d), the Vice-Chancellor shall also be entitled to half-pay leave at the rate of twenty days for each completed year of service, and half-pay leave may also be availed of as commuted leave on full pay on medical certificate:

Provided that when such commuted leave is availed of, twice the amount of half-pay leave shall be debited against half-pay leave due.

3. Powers and duties of Vice-Chancellor. - (1) The Vice-Chancellor shall be ex officio Chairman of the Executive Council, the Academic and Activity Council and the Finance Committee and shall, in the absence of the Chancellor, preside at the Convocations held for conferring degrees and at meetings of the Court.

(2)

The Vice-Chancellor shall be entitled to be present at, and address, any meeting of any authority or other body of the University, but shall not be entitled to vote thereat unless he is a member of such authority or body.

(3)

It shall be the duty of the Vice-Chancellor to see that this Act, the Statutes, the Ordinances and the Regulations are duly observed and he shall have all the powers necessary to ensure such observance.

(4)

The Vice-Chancellor shall have all the powers necessary for the proper maintenance of discipline in the University and he may delegate any such powers to such person or persons as he deems fit.

(5)

The Vice-Chancellor shall have the power to convene or cause to be convened the meetings of the Executive Council, the Academic and Activity Council and the Finance Committee.

4. Deans of Schools. - (1) Every Dean of School shall be appointed by the Vice-Chancellor from amongst the Professors in the School by rotation in order of seniority for a period of three years:

Provided that in case there is only one Professor or no Professor in a School, the Dean shall be appointed, for the time being, from amongst the Professor, if any, and the Associate Professors in the School, by rotation in the order of seniority:

Provided further that a Dean on attaining the age of sixty-five years shall cease to hold office as such.

(2)

When the office of the Dean is vacant or when the Dean is, by reason of illness, absence or any other cause, unable to perform duties of his office, the duties of the office shall be performed by the senior-most Professor or Associate

Professor, as the case may be, in the School.

(3)

The Dean shall be the Head of the School and shall be responsible for the conduct and maintenance of the standards of teaching and research in the School and shall have such other functions as may be prescribed by the Ordinances.

(4)

The Dean shall have the right to be present and to speak at any meeting of the Boards of Sports Studies or Committees of the School, as the case may be, but shall not have the right to vote thereat unless he is a member thereof.

5. Registrar. - (1) The Registrar shall be appointed by the Executive Council on the recommendation of a Selection Committee constituted for the purpose and shall be whole-time salaried officer of University.

(2)

The Registrar shall be appointed for a term of five years and shall be eligible for re-appointment.

(3)

The emoluments and other terms and conditions of service of the Registrar shall be such as may be prescribed by the Executive Council from time to time:

Provided that the Registrar shall retire on attaining the age of sixty-two years.

(4)

When the office of the Registrar is vacant or when the Registrar is, by reason of illness, absence or any other cause, unable to perform the duties of his office, the duties of the office shall be performed by such person as the Vice-Chancellor may appoint for the purpose.

(5)

(a)

The Registrar shall have power to take disciplinary action against such of the employees, excluding teachers and other academic staff, as may be specified in the order of the Executive Council and to suspend them pending inquiry, to administer warnings to them or to impose on them the penalty of censure or the withholding of increment:

Provided that no such penalty shall be imposed unless the person has been given a reasonable opportunity of showing cause against the action proposed to be taken in regard to him.

(b)

An appeal shall lie to the Vice-Chancellor against any order of the Registrar imposing any of the penalties specified in sub-clause (a).

(c)

In a case where the inquiry discloses that a punishment beyond the power of the Registrar is called for, the Registrar shall, upon the conclusion of the inquiry, make a report to the Vice-Chancellor along with his recommendation:

Provided that an appeal shall lie to the Executive Council against an order of the Vice-Chancellor imposing any penalty.

(6)

The Registrar shall be ex officio Secretary of the Executive Council and the Academic and Activity Council, but shall not be deemed to be member of either of these authorities and he shall be ex officio Member-Secretary of the Court.

(7)

It shall be the duty of the Registrar-

(a)

to be the custodian of the records, the common seal and such other property of the University as the Executive Council shall commit to his charge;

(b)

to issue all notices convening meetings of the Court, the Executive Council, the Academic and Activity Council and of any Committee appointed by those authorities;

(c)

to keep the minutes of all the meetings of the Court, the Executive Council, the Academic and Activity Council and of any Committees appointed by those authorities;

(d)

to conduct the official correspondence of the Court, the Executive Council and the Academic and Activity Council;

(e)

to supply to the Central Government, copies of the agenda of the meetings of the authorities of the University as soon as

they are issued and the minutes of such meetings;

(f)

to represent the University in suits or proceedings by or against the University, sign powers of attorney and verify pleadings or depute his representative for the purpose; and

(g)

to perform such other duties as may be specified in the Statutes, the Ordinances or Regulations or as may be required from time to time by the Executive Council.

6. Finance Officer. - (1) The Finance Officer shall be appointed by the Executive Council on the recommendations of the Selection Committee constituted for the purpose and shall be a whole-time salaried officer of the University.

(2)

The Finance Officer shall be appointed for a term of five years and shall be eligible for re-appointment.

(3)

The emoluments and other terms and conditions of service of the Finance Officer shall be such as may be prescribed by the Executive Council from time to time:

Provided that the Finance Officer shall retire on attaining the age of sixty-two years.

(4)

When the office of the Finance Officer is vacant or when the Finance Officer is, by reason of illness, absence or any other cause, unable to perform the duties of his office, the duties of the office shall be performed by such person as the Vice-Chancellor may appoint for the purpose.

(5)

The Finance Officer shall be ex officio Secretary of the Finance Committee, but shall not be deemed to be a member of such Committee.

(6)

The Finance Officer shall-

(a)

exercise general supervision over the funds of the University and shall advise it as regards its financial policy; and

(b)

perform such other financial function as may be assigned to him by the Executive Council or as may be prescribed by the Statutes or the Ordinances.

(7)

Subject to the control of the Executive Council, the Finance Officer shall-

(a)

hold and manage the property and investments of the University including trust and endowed property;

(b)

ensure that the limits fixed by the Executive Council for recurring and non-recurring expenditure for a year are not exceeded and that all moneys are expended on the purpose for which they are granted or allotted;

(c)

be responsible for the preparation of annual accounts and the budget of the University and for their presentation to the Executive Council;

(d)

keep a constant watch on the state of the cash and bank balances and on the state of investments;

(e)

watch the progress of the collection of revenues and advise on the methods of collection employed;

(f)

ensure that the registers of buildings, land, furniture and equipment are maintained up to date and that stock-checking is conducted, of equipment and other consumable materials in all offices, Departments, Centres and Specialised Laboratories;

(g)

bring to the notice of the Vice-Chancellor any unauthorised expenditure and other financial irregularities and suggest disciplinary action against persons at fault; and

(h)

call for, from any office, Department, Centre, Laboratory, College, Institution, Regional Centre or Study Centre established or maintained by the University, any information or returns that he may consider necessary for the performance of his duties.

(8)

Any receipt given by the Finance Officer or the person or persons duly authorised in this behalf by the Executive Council for any money payable to University shall be sufficient discharge for payment of such money.

7. Controller of Examinations. - (1) The Controller of Examinations shall be appointed by the Executive Council on the recommendations of a Selection Committee constituted for the purpose and he shall be a whole-time salaried officer of the University.

(2)

The Controller of Examinations shall be appointed for a term of five years and shall be eligible for re-appointment.

(3)

The emoluments and other terms and conditions of service of the Controller of Examinations shall be such as may be prescribed by the Executive Council from time to time:

Provided that the Controller of Examinations shall retire on attaining the age of sixty-two years.

(4)

When the officer of the Controller of Examinations is vacant or when the Controller of Examinations is, by reason of illness, absence or any other cause, unable to perform the duties of his office, shall be performed by such person as the Vice-Chancellor may appoint for the purpose.

(5)

The Controller of Examinations shall arrange for and superintend the examinations of the University in the manner prescribed by the Ordinances.

8. Librarian. - (1) The Librarian shall be appointed by the Executive Council on the recommendations of the Selection Committee constituted for the purpose and he shall be a whole-time salaried officer of the University.

(2)

The Librarian shall exercise such powers and perform such duties as may be assigned to him by the Executive Council.

9. Constitution and meetings of Court. - (1) The Court shall consist of the following members who shall hold office for a period of three years, namely:-

(a)

Ex officio Members:-

(i)

the Chancellor;

(ii)

the Vice-Chancellor;

(iii)

the Proctor;

(iv)

the Deans of Schools;

(v)

the Dean of Students' Welfare;

(vi)

the Finance Officer;

(vii)

one Senior Warden, by rotation;

(viii)

the Librarian of the University;

(ix)

the President, Alumni Association;

(b)

other Members:

(i)

Heads of Departments or Professors who are members of the Academic and Activity Council;

(ii)

one representative from each institution recognised by the university, nominated by the Vice-Chancellor on recommendations of the Head of the Institution;

(iii)

not more than four persons from amongst eminent sports scientists, sports academicians and sports administrators to be nominated by the Central Government;

(iv)

not more than two persons representing sports industry, to be nominated by the Central Government;

(v)

not more than ten persons from amongst eminent sports persons and highly recognised coaches to be nominated by the Central Government;

(c)

the Registrar, who shall be the ex officio Member Secretary.

(2)

An annual meeting of the Court shall be held on a date to be fixed by the Executive Council unless some other date has been fixed by the Court in respect of any year.

(3)

At an annual meeting of the Court, a report on the working of the University during the previous year, together with a statement of the receipts and expenditure, the balancesheet as audited, and financial estimates for the next year shall be presented.

(4)

A copy of the statement of receipts and expenditure, the balance-sheet and the financial estimates referred to in clause (2) shall be sent to every member of the Court at least seven days before the date of the annual meeting.

(5)

Special meetings of the Court may be convened by the Executive Council or the Vice-Chancellor or if there is no Vice-Chancellor, by the Registrar.

(6)

Eleven members of the Court shall form a quorum for a meeting of the Court.

10. Quorum for meeting of Executive Council. - Seven members of the Executive Council shall form a quorum for a meeting of the Executive Council.

11. Constitution, powers and functions of Executive Council. - (1) The Executive Council shall consist of the following members to be nominated by the Central Government who shall hold office for a period of two years, namely:-

(a)

Ex officio Members:

(i)

the Vice-Chancellor;

(ii)

the Proctor;

(iii)

the Deans of Students' Welfare;

(iv)

the Additional Secretary and Financial Advisor, Ministry of Youth Affairs and Sports;

(v)

the Joint Secretary, Ministry of Youth Affairs and Sports;

(vi)

the Deans of Schools;

(b)

Other Members:

(i)

three Senior Professors by rotation;

(ii)

four persons from amongst sports scientists, sports administrators, eminent sports persons and distinguished coaches.

(2)

The Executive Council shall have the power of management and administration of the revenue and property of the University and the conduct of all administrative affairs of the University not otherwise provided for.

(3)

Subject to the provision of this Act, the Statutes and the Ordinances, the Executive Council shall, in addition to all other powers vested in it, have the following powers, namely:-

(i)

to create teaching and other academic posts including Chairs, to determine the number and emoluments of such posts and to define the duties and conditions of service of Professors, Associate Professors, Assistant Professors and other academic staff:

Provided that no action shall be taken by the Executive Council in respect of the number and qualifications of teachers and other academic staff otherwise than after consideration of the recommendations of the Academic and Activity Council;

(ii)

to appoint such Professors, Associate Professors, Assistant Professors and other academic staff including Chair, as may be necessary, on the recommendation of the Selection Committee constituted for the purpose and to fill up temporary vacancies therein;

(iii)

to promote interfacial research by making joint appointments of teaching staff in different Schools, Department and Centres;

(iv)

to create administrative, ministerial and other necessary posts and to define their duties and conditions of their service and to make appointments thereto in the manner prescribed by the Ordinances;

(v)

to grant leave of absence to any officer of the University other than the Chancellor and the Vice-Chancellor, and to make necessary arrangements for the discharge of the functions of such officer during his absence;

(vi)

to regulate and enforce discipline among employees in accordance with the Statutes and the Ordinances;

(vii)

to manage and regulate the finances, accounts, investments, property, business and all other administrative affairs of the University and for that purpose to appoint such agents as it may think fit;

(viii)

to fix limits on the total recurring and the total non-recurring expenditure for a year on the recommendation of the Finance Committee;

(ix)

to invest any money belonging to the University, including any unapplied income, in such stocks, funds, share or securities, from time to time, as it may think fit or in the purchase of immovable property in India, with the like powers of varying such investment from time to time;

(x)

to transfer or accept transfers of any movable or immovable property on behalf of the University;

(xi)

to provide buildings, premises, furniture and apparatus and other means needed for carrying on the work of the University;

(xii)

to enter into, vary, carry out and cancel contracts on behalf of the University;

(xiii)

to entertain, adjudicate upon, and if thought fit, to redress any grievances of the employees and students of the University who may, for any reason, feel aggrieved;

(xiv)

to appoint examiners and moderators and, if necessary, to remove them, and to fix their fees, emoluments and travelling and other allowances, after consulting the Academic and Activity Council;

(xv)

to select a common seal for the University and provide for the use of such seal;

(xvi)

to make such special arrangements as may be necessary for the residence of women students;

(xvii)

to institute fellowships, scholarships, studentships, medals and prizes;

(xviii)

to provide for the appointment of Visiting Professors, Emeritus Professors, Consultants and Scholars and determine the terms and conditions of such appointments;

(xix)

to enter into partnership with industry and non-Government agencies for the advancement of knowledge and establish a corpus of funds out of the profits of such partnership; and

(xx)

to exercise such other powers and perform such other duties as may be conferred or imposed on it by this Act or these Statutes.

12. Members of Academic and Activity Council and quorum for meeting. - (1) The members of the Academic and Activity Council shall include sports persons who have achieved distinction in Olympics or world championships.

(2)

Nine members of the Academic and Activity Council shall form quorum for the meeting of the Academic and Activity Council.

13. Powers and functions of Academic and Activity Council. - Subject to the provisions of this Act, the Statutes and the Ordinances, the Academic and Activity Council shall, in addition to all other powers vested in it, have the following powers, namely:-

(a)

to exercise general supervision over the academic policies of the University and to give directions regarding methods of instruction, co-ordination of teaching among the Colleges, Institutions, Regional Centres and Study Centres and evaluation of research and improvement of academic standards;

(b)

to bring about and promote inter-School co-ordination and to establish or appoint such committees or boards as may be deemed necessary for the purpose;

(c)

to consider matters of general academic interest either on its own initiative, or on a reference by a School or the Executive Council, and to take appropriate action thereon;

(d)

to frame such regulations and rules consistent with the Statutes and the Ordinances regarding the academic functioning of the University, discipline, residence, admissions, award of fellowships and studentships, fees, concessions, corporate life and attendance.

14. Schools of Studies and Departments. - (1) The University shall have such Schools of Studies as may be specified in the Statutes.

(2)

Every School shall have a School Board and the members of the first School Board shall be nominated by the Executive Council for a period of three years.

(3)

The composition, powers and functions of a School Board shall be prescribed by the Ordinances.

(4)

The conduct of the meetings of a School Board and the quorum required for such meetings shall be prescribed by the Ordinances.

(5)

(a)

Every School shall consist of such Departments as may be assigned to it by the Ordinances:

Provided that the Executive Council may, on the recommendation of the Academic and Activity Council, establish Centres of Studies to which may be assigned such teachers of the University as the Executive Council may consider necessary.

(b)

Each Department shall consist of the following members, namely:-

(i)

teachers of the Department;

(ii)

persons conducting research in the Department;

(iii)

Dean of the School;

(iv)

Honorary Professors, if any, attached to the Department; and

(v)

such other persons as may be members of the Department in accordance with the provisions of the Ordinances.

15. Board of Sports Studies. - (1) Each Department shall have a Board of Sports Studies.

(2)

The term of office of the Board of Sports Studies and of its members shall be prescribed by the Ordinances.

(3)

Subject to the overall control and supervision of the Academic and Activity Council, the functions of a Board of Sports Studies shall be to approve subjects for research for various degrees and other requirements of research degrees and to recommend to the concerned School Board in the manner prescribed by the Ordinances,-

(a)

courses of studies and appointment of examiners for courses, but excluding research degrees;

(b)

appointment of supervisors for research; and

(c)

measures for the improvement of the standard of teaching and research:

Provided that the above functions of a Board of Sports Studies shall, during the period of three years immediately after the commencement of this Act, be performed by the Department.

16. Finance Committee. - (1) The Finance Committee shall consist of the following members, namely:-

(i)

the Vice-Chancellor;

(ii)

one person to be nominated by the Court;

(iii)

three persons to be nominated by the Executive Council, out of whom at least one shall be a member of the Executive Council; and

(iv)

three persons to be nominated by the Central Government.

(2)

Five members of the Finance Committee shall form a quorum for a meeting of the Finance Committee.

(3)

All the members of the Finance Committee, other than ex officio members, shall hold office for a term of three years.

(4)

A member of the Finance Committee shall have the right to record a minute of dissent if he does not agree with any decision of the Finance Committee.

(5)

The Finance Committee shall meet at least thrice every year to examine the accounts and to scrutinise proposals for expenditure.

(6)

All proposals relating to creation of posts, and those items which have not been included in the budget, shall be examined by the Finance Committee before they are considered by the Executive Council.

(7)

The annual accounts and the financial estimates of the University prepared by the Finance Officer shall be laid before the Finance Committee for consideration and comments and thereafter submitted to the Executive Council for approval.

(8)

The Finance Committee shall recommend limits for the total recurring expenditure and the total non-recurring expenditure for the year, based on the income and resources of the University (which, in the case of productive works, may include the proceeds of loans).

17. Selection Committees. - (1) There shall be Selection Committees for making recommendations to the Executive Council for appointment to the post of Professor, Associate Professor, Assistant Professor, Registrar, Finance Officer, Controller of Examinations, Librarian and Principals of Colleges, Institutions, Regional Centres and Study Centres established or maintained by the University.

(2)

The Selection Committee for appointment to the posts specified in column 1 of the Table below shall consist of the Vice-Chancellor, a nominee of the Central Government and the persons specified in the corresponding entry in column 2 of the said Table:

1

2

Professor.

(i) The Dean of the School.

(ii) The Head of the Department, if he is a Professor.

(iii) Three persons not in the service of the University, nominated by the Executive Council, out of a panel of names recommended by the Academic and Activity Council for their special knowledge of, or interest in, the subject with which the Professor will be concerned.

Associate Professor/Assistant Professor.

(i) The head of the Department.

(ii) One Professor nominated by the Vice-Chancellor.

(iii) Two persons not in the service of the University, nominated by the Executive Council, out of a panel of names recommended by the Academic and Activity Council for their special knowledge of, or interest in, the subject with which the Associate Professor or Assistant Professor will be concerned.

Registrar/ Finance Officer/Controller of Examination.

(i) Two members of the Executive Council nominated by it.

(ii) One person not in the service of the University nominated by the Executive Council.

Librarian.

(i) One person not in the service of the University who has special knowledge of the subject of the Library Science or Library Administration nominated by the Executive Council.

(ii) One person not in the service of the

University nominated by the Executive Council.

Principal of College or Institution maintained by the University.

Three persons not in the service of the

University of whom two shall be nominated by the Executive Council and one by the Academic and Activity Council for their special knowledge of, or interest in, a subject in which instruction is being provided by the College or Institution.

Note 1: Where the appointment is being made for an inter-disciplinary project, the head of the project shall be deemed to be the Head of the Department concerned.

Note 2: The Professor to be nominated by the Vice-Chancellor shall be a Professor concerned with the speciality for which the selection is being made and the Vice-Chancellor shall consult the Head of the Department and the Dean of the School before nominating the Professor.

(3)

The Vice-Chancellor shall convene and preside at the meeting of the Selection Committee:

Provided that the meeting of the Selection Committee shall be fixed after prior consultation with, and subject to the convenience of the Central Government's nominee and the experts nominated by the Executive Council:

Provided further that the proceedings of the Selection Committee shall not be valid unless,-

(a)

where the number of the Central Government's nominee and the persons nominated by the Executive Council is four in all, at least three of them attend the meeting; and

(b)

where the number of the Central Government's nominee and the persons nominated by the Executive Council is three in all, at least two of them attend the meeting.

(4)

The procedure to be followed by the Selection Committee shall be laid down in the Ordinances.

(5)

If the Executive Council is unable to accept the recommendations made by the Selection Committee, it shall record its reasons and submit the case to the Central Government for final orders.

(6)

(a)

Appointments to temporary posts shall,-

(i)

if the temporary vacancy is for duration longer than one academic session, be filled on the advice of the Selection Committee in accordance with the procedure indicated in the foregoing clauses:

Provided that if the Vice-Chancellor is satisfied that in the interests of work it is necessary to fill the vacancy, the appointment may be made on a purely temporary basis on the advice of a local Selection Committee referred to in sub-clause (ii) for a period not exceeding six months;

(ii)

if the temporary vacancy is for a period less than a year, be made on the recommendation of a local Selection Committee consisting of the Dean of the School concerned, the Head of the Department and a nominee of the Vice-Chancellor:

Provided that if the same person holds the offices of the Dean and the Head of the Department, the Selection Committee may contain two nominees of the Vice-Chancellor:

Provided further that in the case of sudden casual vacancies of teaching posts caused by death or any other reason, the Dean may, in consultation with the Head of the Department concerned, make a temporary appointment for a month and report to the Vice-Chancellor and the Registrar about such appointment.

(b)

No teacher appointed temporarily shall, if he is not recommended by a regular Selection Committee for appointment under the Statutes, be continued in service on such temporary employment, unless he is subsequently selected by a local Selection Committee or a regular Selection Committee, for a temporary or permanent appointment, as the case may be.

18. Special mode of appointment. - (1) Notwithstanding anything contained in Statute 17, the Executive Council may invite a person of high academic distinction and professional attainments to accept a post of Professor or Associate Professor or any other equivalent academic post in the University on such terms and conditions as it deems fit and on the person agreeing to do so appoint him to the post:

Provided that the Executive Council may also create supernumerary posts for a specified period for appointment of such persons:

Provided further that the number of supernumerary posts so created should not exceed five per cent. of the total posts in the University.

(2)

The Executive Council may appoint a teacher or any other academic staff working in any other University or organisation for undertaking a joint project in accordance with the manner laid down in the Ordinances.

19. Appointment for fixed tenure. - The Executive Council may appoint a person selected in accordance with the procedure laid down in Statute 17 for a fixed tenure on such terms and conditions as it deems fit.

20. Committees. - (1) An authority of the University may appoint as many standing or special committees as it may deem fit, and may appoint to such committees persons who are not members of such authority.

(2)

A committee appointed under clause (1) may deal with any subject delegated to it subject to subsequent confirmation by the authority appointing it.

21. Terms and conditions of service and code of conduct of teachers, etc. - (1) All the teachers and other academic staff of the University shall, in the absence of any agreement to the contrary, be governed by the terms and conditions of service and code of conduct as are specified in the Statutes, the Ordinances and the Regulations.

(2)

The emoluments of members of the academic staff shall be such as may be prescribed by the Ordinances.

(3)

Every teacher and member of the academic staff of the University shall be appointed on a written contract, the form of which shall be prescribed by the Ordinances.

(4)

A copy of every contract referred to in clause (3) shall be deposited with the Registrar.

22. Terms and conditions of service and code of conduct of other employees. - (1) All the employees of the University, other than the teachers and other academic staff shall, in the absence of any contract to the contrary, be governed by the terms and conditions of service and code of conduct as are specified in the Statutes, the Ordinances and the Regulations.

(2)

The manner of appointment and emoluments of employees, other than the teachers and other academic staff, shall be such as may be prescribed by the Ordinances.

23. Seniority list. - (1) Whenever, in accordance with the Statutes, any person is to hold an office or be a member of an authority of the University by rotation according to seniority, such seniority shall be determined according to the length of continuous service of such person in his grade and in accordance with such other principles as the Executive Council may, from time to time, prescribe.

(2)

It shall be the duty of the Registrar to prepare and maintain in respect of each class of persons to whom the provisions of these Statutes apply, a complete and up-to-date seniority list in accordance with the provisions of clause (1).

(3)

If two or more persons have equal length of continuous service in a particular grade or the relative seniority of any person or persons is otherwise in doubt, the Registrar may, on his own motion and shall, at the request of any such person, submit the matter to the Executive Council whose decision thereon shall be final.

24. Removal of employees of University. - (1) Where there is an allegation of misconduct against a teacher, a member of the academic staff or other employee of the University, the Vice-Chancellor, in the case of the teacher or a member of the academic staff, and the authority competent to appoint (hereinafter referred to as the appointing authority) in the case of other employee may, by order in writing, place such teacher, member of the academic staff or other employee, as the case may be, under suspension and shall forthwith report to the Executive Council the circumstances in which the

order was made:

Provided that the Executive Council may, if it is of the opinion, that the circumstances of the case do not warrant the suspension of the teacher or a member of the academic staff, revoke such order.

(2)

Notwithstanding anything contained in the terms of the contract of appointment or of any other terms and condition of service of the employees, the Executive Council in respect of teachers and other academic staff, and the appointing authority in respect of other employees, shall have the power to remove a teacher or a member of the academic staff or other employee, as the case may be, on grounds of misconduct.

(3)

Save as aforesaid, the Executive Council, or as the case may be, the appointing authority, shall not be entitled to remove any teacher, member of the academic staff or other employee except for a good cause and after giving three months' notice or on payment of three months' salary in lieu thereof.

(4)

No teacher, member of the academic staff or other employee shall be removed under clause (2) or clause (3) unless he has been given a reasonable opportunity of showing cause against the action proposed to be taken in regard to him.

(5)

The removal of a teacher, member of the academic staff or other employee shall take effect from the date on which the order of removal is made:

Provided that where the teacher, member of the academic staff or other employee is under suspension at the time of his removal, such removal shall take effect from the date on which he was placed under suspension.

(6)

Notwithstanding anything contained in the foregoing provisions of the Statute, a teacher, member of the academic staff or other employee may resign,-

(a)

if he is a permanent employee, only after giving three months' notice in writing to the Executive Council or the appointing authority, as the case may be, or by paying three months' salary in lieu thereof;

(b)

if he is not a permanent employee, only after giving one month's notice in writing to the Executive Council or, as the case may be, the appointing authority or by paying one month's salary in lieu thereof:

Provided that such resignation shall take effect only on the date on which the resignation is accepted by the Executive Council or the appointing authority, as the case may be.

25. Honorary degrees. - (1) The Executive Council may, on the recommendation of the Academic and Activity Council and by a resolution passed by a majority of not less than two-thirds of the members present and voting, make proposals to the Central Government for the conferment of honorary degrees:

Provided that in case of emergency, the Executive Council may, on its own motion, make such proposals.

(2)

The Executive Council may, by a resolution passed by a majority of not less than two-thirds of the members present and voting, withdraw, with the previous sanction of the Central Government, any honorary degree conferred by the University.

26. Withdrawal of degrees, etc. - The Executive Council may, by a resolution passed by a majority of not less than two-thirds of the members present and voting, withdraw a degree or academic distinction conferred on, or any certificate or diploma granted to, any person by the University for good and sufficient cause:

Provided that no such resolution shall be passed until a notice in writing has been given to that person calling upon him to show cause within such time as may be specified in the notice as to why such a resolution should not be passed and until his objections, if any, and any evidence he may produce in support of them, have been considered by the Executive Council.

27. Maintenance of discipline amongst students of University. - (1) All powers relating to the maintenance of discipline and disciplinary action in relation to the students of the University shall vest in Vice-Chancellor.

(2)

There shall be Proctor of the University to assist the Vice-Chancellor in the exercise of the powers referred to in clause (1), who shall be appointed by the Executive Council from amongst the Professors and Associate Professors in the

manner prescribed by the Ordinances.

(3)

The Vice-Chancellor may delegate all or any of the powers referred to in clause (1), as he deems proper, to the Proctor and to such other officers as he may specify in this behalf.

(4)

Without prejudice to the generality of his powers relating to the maintenance of discipline and taking such action, as may seem to him appropriate for the maintenance of discipline, the Vice-Chancellor may, in exercise of such powers, by order, direct that any student or students be expelled or rusticated, for a specified period, or be not admitted to a course or courses of study in a College, Institution or Regional Centre or a Department or a School of the University for a stated period, or be punished with fine for an amount to be specified in the order, or be debarred from taking an examination or examinations conducted by the University, College, Institution or Regional Centre or Department or a School for one or more years, or that the results of the student or students concerned in the examination or examinations in which he or they have appeared be withheld or cancelled.

(5)

The Principals of Colleges, Institutions, Deans of Schools of Studies and Heads of teaching Departments in the University shall have the authority to exercise all such disciplinary powers over the students in their respective Colleges, Institutions, Schools and teaching Departments in the University, as may be necessary for the proper conduct of such Colleges, Institution, Schools and teaching Departments.

(6)

Without prejudice to the powers of the Vice-Chancellor and the Principals and other persons specified in clause (5), detailed rules of discipline and proper conduct shall be made by the University and the Principals of Colleges, Institutions, Deans of Schools of Studies and Heads of teaching Departments in the University may also make such supplementary rules as they deem necessary for the purposes stated therein.

(7)

At the time of admission, every student shall be required to sign a declaration to the effect that he submits himself to the disciplinary jurisdiction of the Vice-Chancellor and other authorities of the University.

28. Convocations. - Convocations of the University for the conferring of degrees or for other purposes shall be held in such manner as may be prescribed by the Ordinances.

29. Acting Chairman of meetings. - Where no provision is made for Chairman to preside over a meeting of any authority of the University or any Committee of such authority or when the Chairman so provided for is absent, the members present shall elect one from among themselves to preside at such meeting.

30. Resignation. - Any member, other than an ex officio member of the Court, the Executive Council, the Academic and Activity Council or any other authority of the University or any Committee of such authority may resign by letter addressed to the Registrar and the resignation shall take effect as soon as such letter is received by the Registrar.

31. Disqualification. - (1) A person shall be disqualified for being chosen as, and for being, a member of any of the authorities, or for being appointed as, and for being, an officer, of the University if-

(i)

he is of unsound mind;

(ii)

he is an undischarged insolvent; or

(iii)

he has been convicted by a court of law of an offence involving moral turpitude and sentenced in respect thereof to imprisonment for not less than six months.

(2)

If any question arises as to whether a person is or had been subjected to any of the disqualifications mentioned in sub-clause (i), the question shall be referred to the Central Government and its decision shall be final and no suit or other proceeding shall lie in any civil court against such decision.

32. Residence conditions for membership and office. - Notwithstanding anything contained in the Statutes, a person who is not ordinarily resident in India shall not be eligible to be an officer of the University or a member of any authority of the University.

33. Membership of authorities by virtue of membership of other bodies. - Notwithstanding anything contained in the

Statutes, a person who holds any post in the University or is a member of any authority or body of the University in his capacity as a member of a particular authority or body or as the holder of a particular appointment shall hold such office or membership only for so long as he continues to be a member of that particular authority or body or the holder of that particular appointment, as the case may be.

34. Alumni Association. - (1) There shall be an Alumni Association for the University.

(2)

The subscription for membership of the Alumni Association shall be prescribed by the Ordinances.

(3)

No member of the Alumni Association shall be entitled to vote or stand for election unless he has been a member of the Association for at least one year prior to the date of election and is a degree holder of the University of at least five years standing:

Provided that the condition relating to the completion of one year's membership shall not apply in the case of the first election.

35. Students Council. - (1) There shall be constituted in the University, a Students' Council for every academic year, consisting of,-

(i)

the Dean of Students' Welfare who shall be the Chairman of the Students' Council;

(ii)

twenty students to be nominated by the Academic and Activity Council on the basis of merit in studies, sports and extra-curricular activities; and

(iii)

twenty students to be elected by the students as their representatives:

Provided that any student of the University shall have the right to bring up any matter concerning the University before the Students' Council, if so permitted by the Chairman, and he shall have the right to participate in the discussions at any meeting when the matter is taken up for consideration.

(2)

The functions of the Students' Council shall be to make suggestions to the appropriate authorities of the University in regard to the programmes of studies, students' welfare and other matters of importance, in regard to the working of the University in general and such suggestions shall be made on the basis of consensus of opinion.

(3)

The Students' Council shall meet at least twice in every academic year and the first meeting of the Council be held in the beginning of the academic session.

36. Ordinances how to be made. - (1) The first Ordinances made under sub-section (2) of section 26 may be amended or repealed at any time by the Executive Council in the manner specified in the following clauses.

(2)

No Ordinances in respect of the matters enumerated in sub-section (1) of section 26 of this Act shall be made by the Executive Council unless a draft of such Ordinances has been proposed by the Academic and Activity Council.

(3)

The Executive Council shall not have power to amend any draft of any Ordinances proposed by the Academic and Activity Council under clause (2), but may reject the proposal or return the draft to the Academic and Activity Council for re-consideration, either in whole or in part, together with any amendment which the Executive Council may suggest.

(4)

Where the Executive Council has rejected or returned the draft of an Ordinances proposed by the Academic and Activity Council, the Academic and Activity Council may consider the question afresh and in case the original draft is reaffirmed by a majority of not less than two-thirds of the members present and voting and more than half of the total number of members of the Academic and Activity Council, the draft may be sent back to the Executive Council which shall either adopt it or refer it to the Central Government whose decision shall be final.

(5)

Every Ordinance made by the Executive Council shall come into effect immediately.

(6)

Every Ordinance made by the Executive Council shall be submitted to the Central Government within two weeks from

the date of its adoption.

(7)

The Central Government shall have the power to direct the University to suspend the operation of any Ordinance.

(8)

The Central Government shall inform the Executive Council about its objection to the Ordinances referred to in clause (7) and may, after receiving the comments of the University, either withdraw the order suspending the Ordinances or disallow the Ordinances, and its decision shall be final.

37. Regulations. - (1) The authorities of the University may make Regulations consistent with this Act, the Statutes and the Ordinances for the following matters, namely:-

(i)

laying down the procedure to be observed at their meeting and the number of members required to form a quorum;

(ii)

providing for all matters which are required by this Act, the Statutes or the Ordinances, to be prescribed by Regulations; and

(iii)

providing for all other matters solely concerning such authorities or committees appointed by them and not provided for by this Act, the Statutes or the Ordinances.

(2)

Every authority of the University shall make Regulations providing for the giving of notice to the members of such authority of the dates of meeting and of the business to be considered at meetings and for the keeping of a record of the proceedings of meetings.

(3)

The Executive Council may direct the amendment in such manner as it may specify of any Regulation made under the Statutes or the annulment of any such Regulation.

38. Delegation of powers. - Subject to the provisions of this Act and the Statutes, any officer or authority of the University may delegate his or its powers to any other officer or authority or person under his or its respective control and subject to the condition that overall responsibility for the exercise of the powers so delegated shall continue to vest in the officer or authority delegating such powers.

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